

RIVERCREST LAW PLLC

Sebastian Miller, Attorney at Law • WSBA #50261

Operating as Pierce Defense Law (piercedefense.com) and Rivercrest Law Defense
(defense.rivercrestlaw.com)

TRAFFIC INFRACTION REPRESENTATION AGREEMENT

(Flat-Fee Limited Scope Engagement)

This Representation Agreement (“Agreement”) is between **Rivercrest Law PLLC** (“the Firm”) and the client identified in the accompanying intake and payment records (“Client”). By submitting a ticket through one of the Firm’s websites and completing payment, Client retains the Firm on the following terms.

1. Scope of Representation — Traffic Infractions Only

The Firm will represent Client in the defense of the **civil traffic infraction** identified at intake, including case review, entry of a notice of appearance, discovery requests, negotiations with the prosecuting authority where available, and court appearances through final disposition of the infraction.

This engagement is limited to civil traffic infractions. It expressly excludes criminal matters of every kind, including without limitation criminal traffic offenses such as driving under the influence (DUI), reckless driving, negligent driving in the first degree, driving while license suspended, and hit-and-run. If any charge associated with Client’s citation is criminal, that charge is outside the scope of this Agreement, and Client should contact the Firm immediately to discuss whether separate representation is available.

This engagement also excludes appeals, administrative license proceedings, and any civil claims arising from the underlying incident.

2. Flat Fee

The fee paid at intake is a flat fee that covers the attorney services described in Section 1. The fee is earned upon receipt and is the Firm’s property upon receipt; it will not be deposited into a trust account. Client may end the representation at any time; if Client does, the Firm will

refund any portion of the fee not reasonably earned by work already performed, consistent with the Rules of Professional Conduct.

3. Tickets Submitted After the Court's Response Deadline

Washington courts require a response to a notice of infraction within a set deadline (generally 30 days from issuance). If Client's ticket is submitted to the Firm **after the applicable response deadline has passed**, the Firm will, at its discretion, either:

- a. **decline the representation and refund** the fee paid; or
- b. **offer to proceed for an additional fee** reflecting the added work required to address the late response (for example, a motion to set aside a failure-to-respond determination). No additional fee will be charged without Client's prior authorization.

4. Court Costs, Fines, and Penalties

The flat fee covers attorney services only. Client remains responsible for any court-imposed fines, fees, assessments, or penalties if the matter does not result in dismissal.

5. Client Responsibilities; Insurance and Registration Documents

Client agrees to respond promptly to the Firm's requests for information. **If Client obtains new insurance or vehicle registration information** (for example, proof of insurance responsive to an insurance citation, or corrected registration), Client should email it to the Firm **with Client's case number in the subject line**. The case number is provided in the Firm's welcome email.

6. Communication

The Firm will provide case updates primarily by email, including notice of hearing dates and final disposition. In most cases Client is not required to appear in court; the Firm will advise Client if an appearance becomes necessary.

7. No Guarantee of Outcome

The Firm will provide competent and diligent representation but makes no promise or guarantee as to the outcome of the matter.

8. Conflicts and Accuracy of Intake Information

This engagement is accepted in reliance on the accuracy of the information Client provided at intake. If the citation, court, or charges differ materially from what was disclosed (including any criminal charge), the Firm may adjust the fee with Client's authorization or withdraw and refund the unearned portion of the fee.

9. File Retention

Upon conclusion of the matter, the Firm will retain the client file in accordance with Washington law and the Rules of Professional Conduct, after which it may be destroyed.

Acknowledgment. By completing payment through the Firm's website, Client acknowledges receipt of this Agreement and consents to representation on these terms. A copy of this Agreement and the payment receipt are delivered to Client by email at the address provided at intake.

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